Before awareness.

When an owner would give up a lost object, but does not yet know it is lost—does that future response count now?

יאוש שלא מדעת

בבא מציעא כא ע״ב–כב ע״ב

A FOUR-MINUTE CONVERSATION

01 **Frame the dispute.** Contrast future despair with present awareness. Keep the agreed scope restrictions visible.

02 **Test one premise.** The coins reply attacks the assumed unawareness, leaving the Mishnah intact.

03 **Inspect the bridge.** Separate the final river comparison from Rashi’s timing clarification and the supplied reconstruction.

04 **Invite revision.** Which node or relation would you redraw? Compare it with the source excerpts.

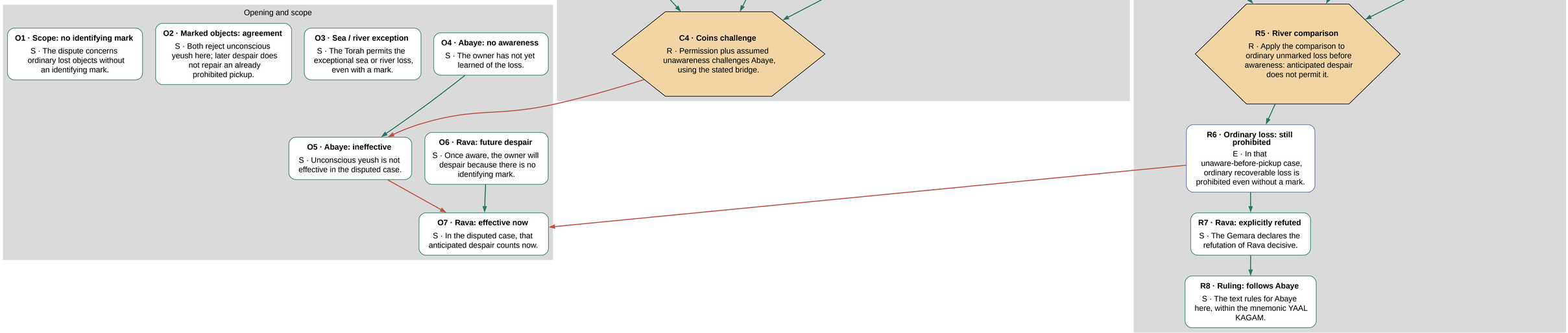
22 base nodes · 18 base relations · Three selected episodes. A separate ledger adds 21 commentary claims and argument sketches: Rashi, Tosafot, Rashba, and Ritva via Shittah Mekubbetzet. This is an argument reconstruction for discussion, not a complete encoding of the sugya, a machine proof, or a system for deciding halakhah.

Reading order: base maps and sources (pages 2–7), then four commentary maps and their Hebrew sources (pages 8–15), inference detail maps (16–17), and numbered reconstructions (18–20). The overview is an A1 landscape foldout; episode pages use A3 to keep node text readable. Source notes use A4. View pages individually or print at actual size; shrinking the foldout onto A4 makes its labels small.

Three episodes with cross-episode links.

A bounded reconstruction for discussion. The source contains additional challenges between these episodes; their omission here is deliberate.

→ support → attack Rectangle: claim · Hexagon: argument sketch / numbered inference S Source E Explanation R Reconstruction

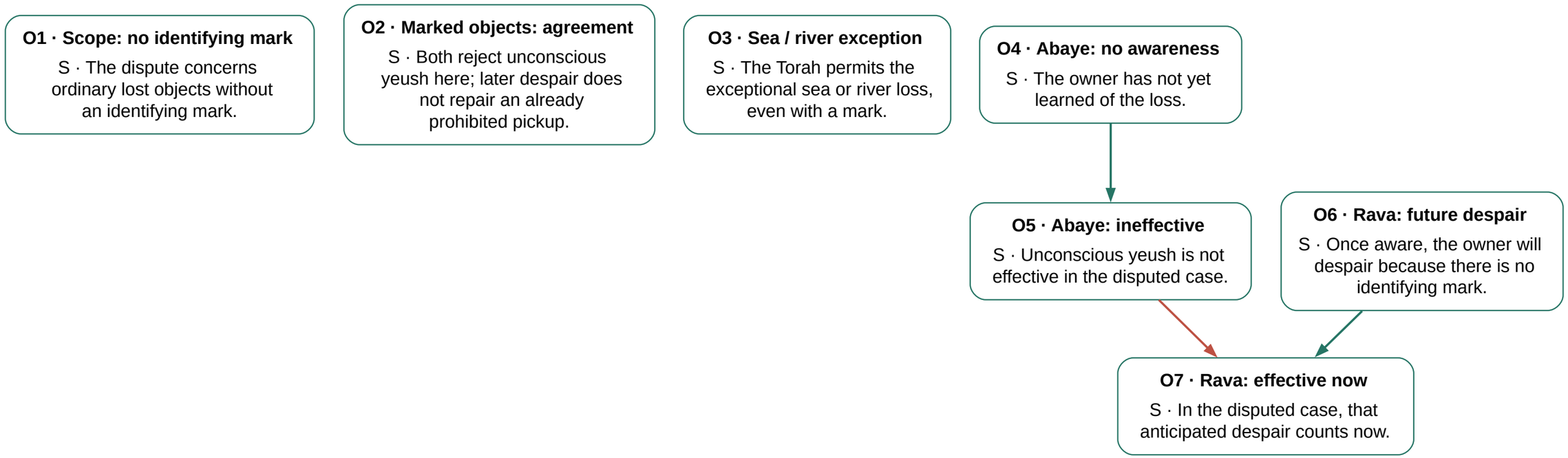


The overview preserves cross-episode attacks. Use the episode views for legibility and the source ledger for provenance. Arrows express reconstructed dialectical relations, not mechanically verified entailment.

Can future despair count now?

Imagine an ordinary lost object without an identifying mark. The owner would despair upon learning of the loss—but has not yet learned. Abaye requires awareness; Rava counts the anticipated response now.

→ support → attack Rectangle: claim · Hexagon: argument sketch / numbered inference S Source E Explanation R Reconstruction

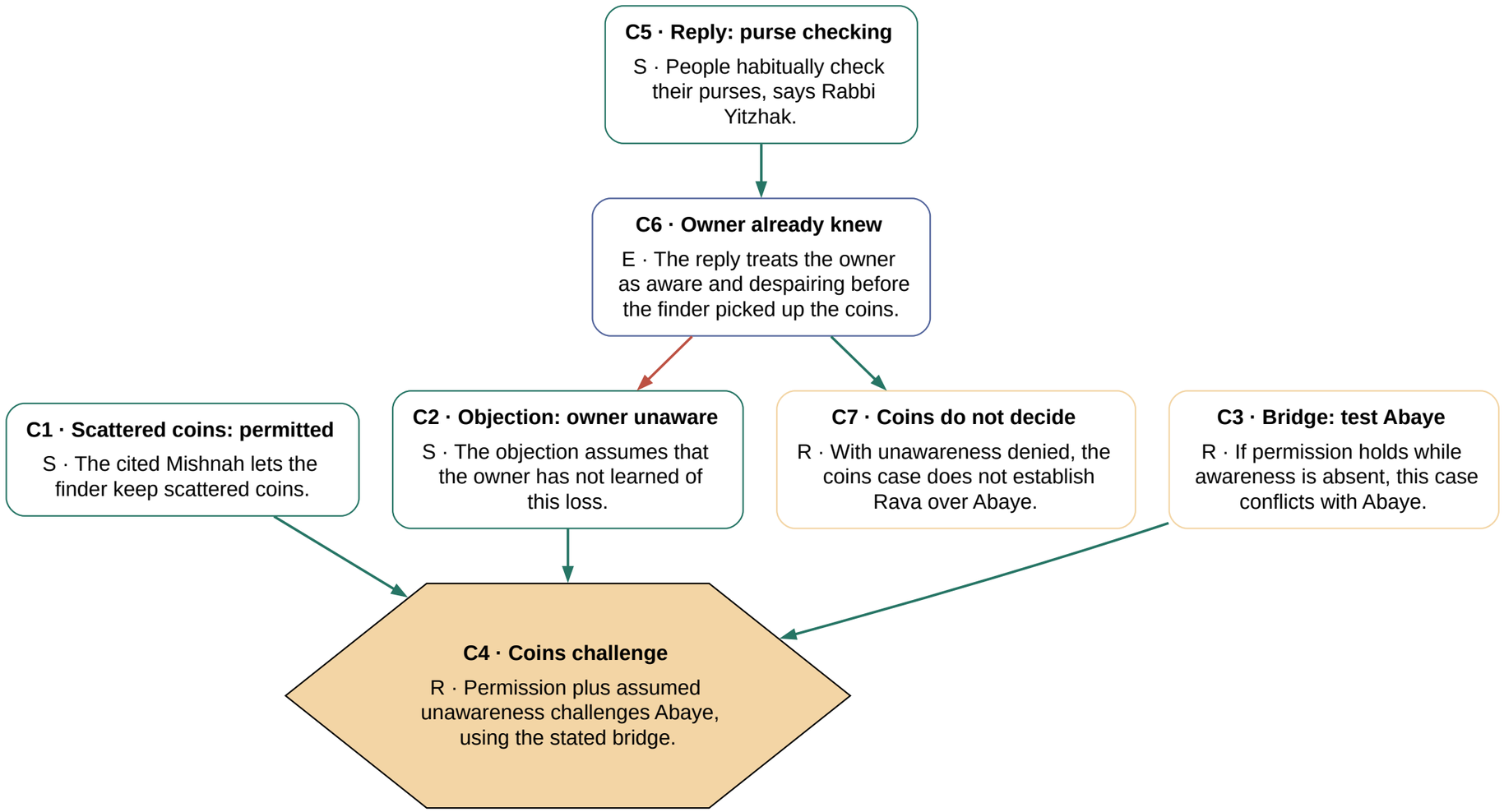


O1–O3 are scope statements, deliberately unconnected. They define where the dispute applies; they are not premises proving either side. The red arrow records the conflict between the positions.

A reply can change the facts.

The Mishnah allows the finder to keep scattered coins. The anonymous objection asks how that can hold if the owner is still unaware. The answer invokes Rabbi Yitzhak's habitual purse checking.

→ **support** → **attack** Rectangle: claim · Hexagon: argument sketch / numbered inference **S** Source **E** Explanation **R** Reconstruction

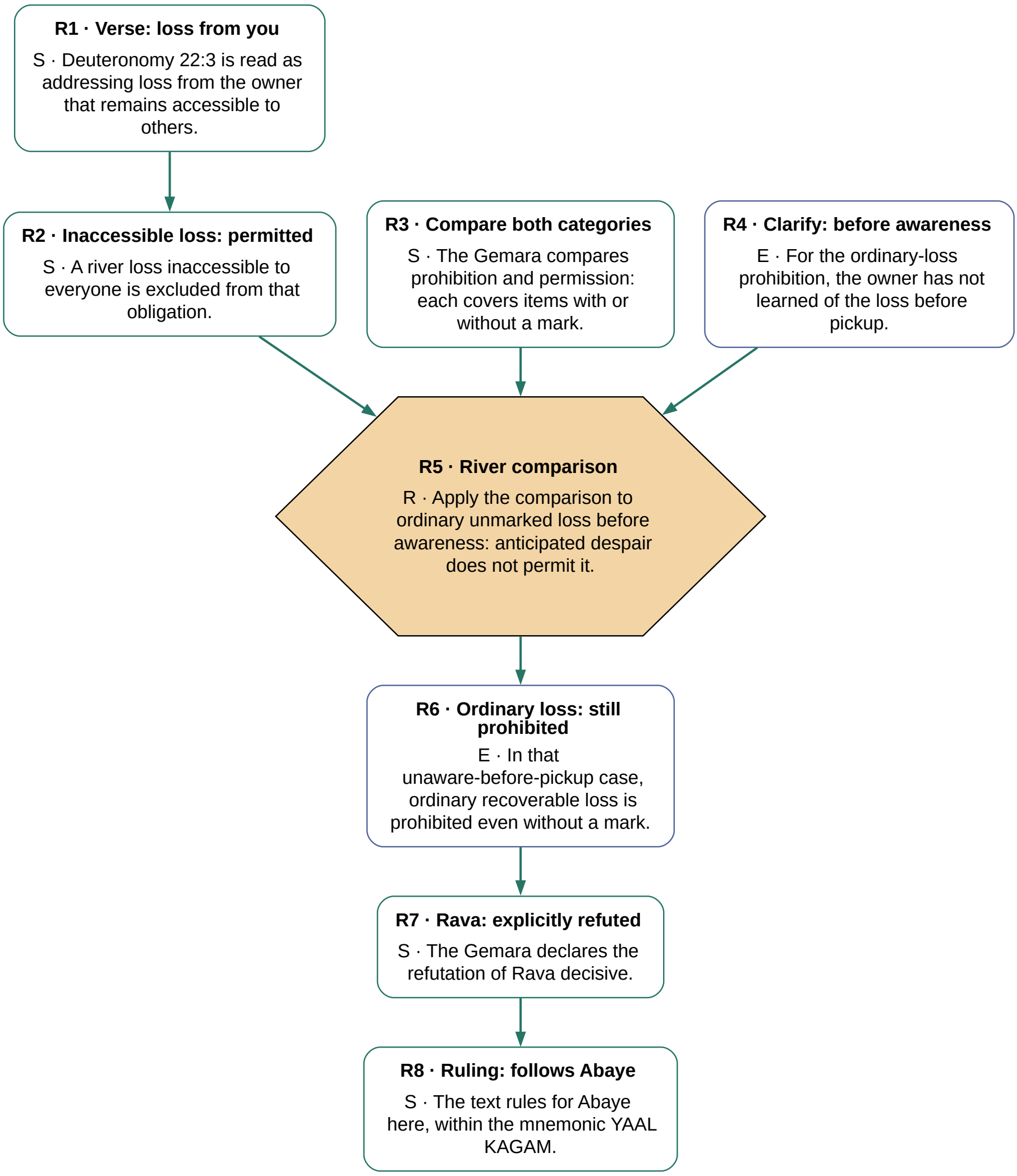


Follow C5 → C6 → C2: the reply attacks the assumed absence of awareness. It leaves the Mishnah intact. The overview adds the challenge's attack on Abaye (C4 → O5). No undercut is asserted.

The exception illuminates the rule.

The verse excludes loss inaccessible to everyone. The Gemara then compares the permitted and prohibited categories, including objects with and without identifying marks.

→ **support** → **attack** Rectangle: claim · Hexagon: argument sketch / numbered inference **S** Source **E** Explanation **R** Reconstruction



R4 makes the temporal qualification visible: this concerns the owner’s unawareness before pickup (Rashi). R5 reconstructs the comparison; river permission alone does not refute Rava. The overview shows R6 attacking Rava (O7).

What comes from where?

S **Source:** an explicit claim or question, in original English paraphrase. E **Explanation:** attributed expansion. R **Reconstruction:** a supplied bridge, argument summary or local assessment. These classes are provenance, not truth scores.

Nodes	Source passage
O1, O4, O6, O7	Bava Metzia 21b:4
O2	Bava Metzia 21b:2
O3	Bava Metzia 21b:3
O5	Bava Metzia 21b:1
C1–C7	Bava Metzia 21b:7
R1–R2	Bava Metzia 22b:5
R3, R4, R6, R7	Bava Metzia 22b:6
R5	Bava Metzia 22b:5-6
R8	Bava Metzia 22b:7

C6 · Awareness before the find. Following Rashi's עשוי למשמש on 21b, the reply treats awareness and despair as preceding discovery. C6 attacks C2's factual assumption; it is not an undercut of C4's inference.

R4 and R6 · The temporal qualification. Following Rashi on 22b:6, especially אף איסורא, the ordinary-loss prohibition concerns an owner who has not learned of the loss before pickup. This is not a universal prohibition on keeping all unmarked objects.

R5 · Supplied bridge. Compare the ordinary prohibition with the exceptional permission under R4's temporal qualification. River permission alone does not refute Rava. The final comparison is on 22b:5–7, distinct from the earlier river exchange on 22a.

All arrows are editorial reconstruction in Argdown's loose mode, not formal entailments. O1–O3 are isolated scope notes. The Gemara's refutation and ruling are recorded, not computed. Intervening challenges, including figs/olives/carobs, are deliberately omitted.

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Return to the words.

Unvocalized Wikisource Talmud Bavli via Sefaria. These are selected excerpts; intervening discussions are omitted.

Bava Metzia 21b:1

יאוש שלא מדעת אביי אמר לא הוי יאוש ורבא אמר הוי יאוש

Bava Metzia 21b:2

בדבר שיש בו סימן כולי עלמא לא פליגי דלא הוי יאוש ואף על גב דשמעיניה דמיאש לסוף לא הוי יאוש דכי אתא לידיה באיסורא הוא דאתא לידיה דלכי ידע דנפל מיניה לא מיאש מימר אמר סימנא אית לי בגויה יהבנא סימנא ושקילנא ליה

Bava Metzia 21b:3

בזוטו של ים ובשלוליתו של נהר אע"ג דאית ביה סימן רחמנא שרייה כדבעינן למימר לקמן

Bava Metzia 21b:4

כי פליגי בדבר שאין בו סימן אביי אמר לא הוי יאוש דהא לא ידע דנפל מיניה רבא אמר הוי יאוש דלכי ידע דנפל מיניה מיאש מימר אמר סימנא לית לי בגויה מהשתא הוא דמיאש

Bava Metzia 21b:7

ת"ש מעות מפוזרות הרי אלו שלו אמאי הא לא ידע דנפל מיניה התם נמי כדרבי יצחק דאמר אדם עשוי למשמש בכיסו בכל שעה ושעה הכא נמי אדם עשוי למשמש בכיסו בכל שעה ושעה

Bava Metzia 22b:5

ת"ש דא"ר יוחנן משום רבי ישמעאל בן יהוצדק מנין לאבידה ששטפה נהר שהיא מותרת דכתיב (דברים כב, ג) וכן תעשה לחמורו וכן תעשה לשמלתו וכן תעשה לכל אבידת אחיך אשר תאבד ממנו ומצאתה מי שאבודה הימנו ומצויה אצל כל אדם יצאתה זו שאבודה ממנו ואינה מצויה אצל כל אדם

Bava Metzia 22b:6

ואיסורא דומיא דהיתירא מה היתירא בין דאית בה סימן ובין דלית בה סימן שרא אף איסורא בין דאית בה סימן ובין דלית בה סימן אסורה תיובתא דרבא תיובתא

Bava Metzia 22b:7

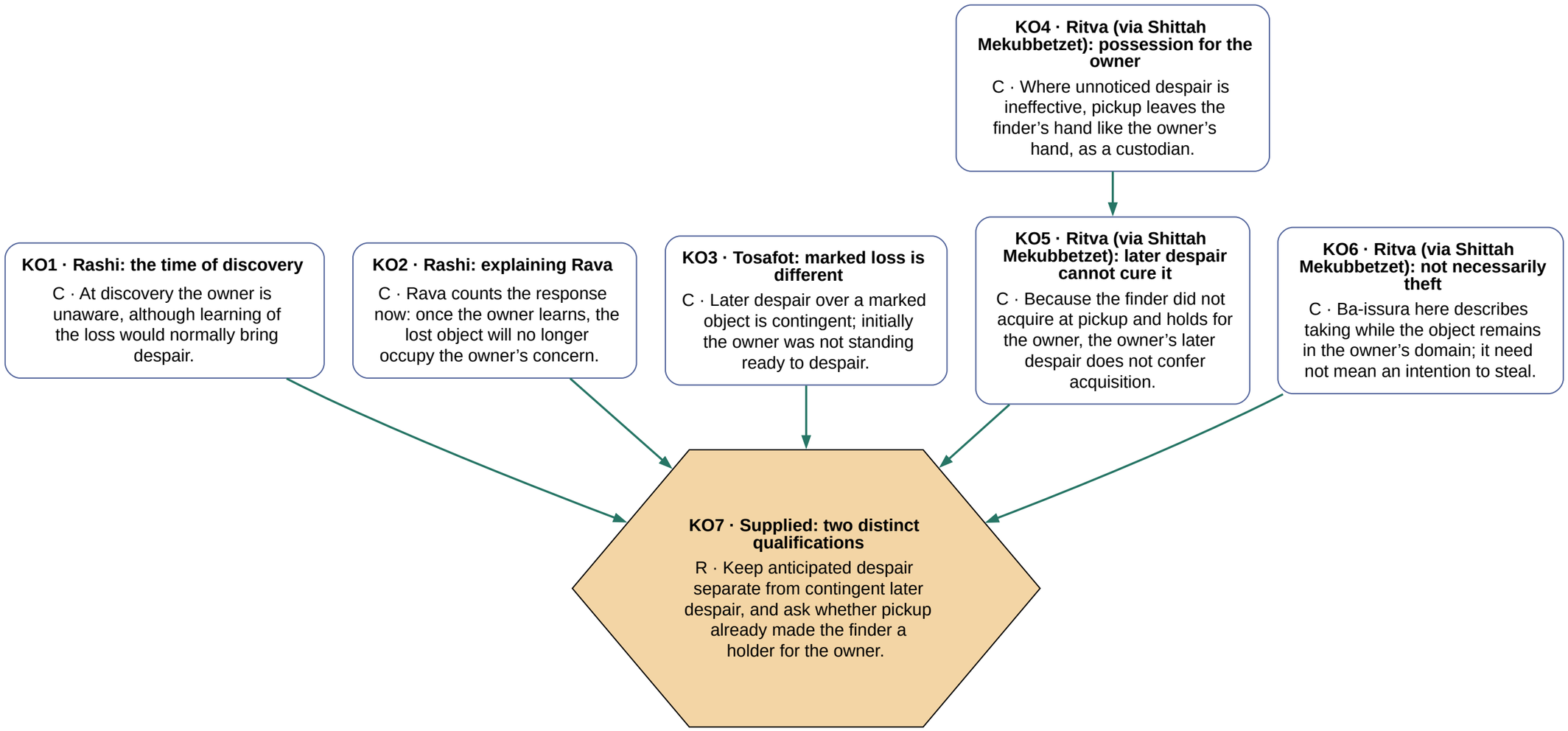
והלכתא כוותיה דאביי ביע"ל קג"ם

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Timing, expectation, possession.

Rashi defines the timing and explains Rava. Tosafot qualifies the marked-object case. Ritva, quoted in Shittah Mekubbetzet, explains why later despair cannot repair pickup for the owner.

→ **supports / explains** C Attributed commentator R Supplied editorial bridge All arrows are editorial; base maps remain separate.

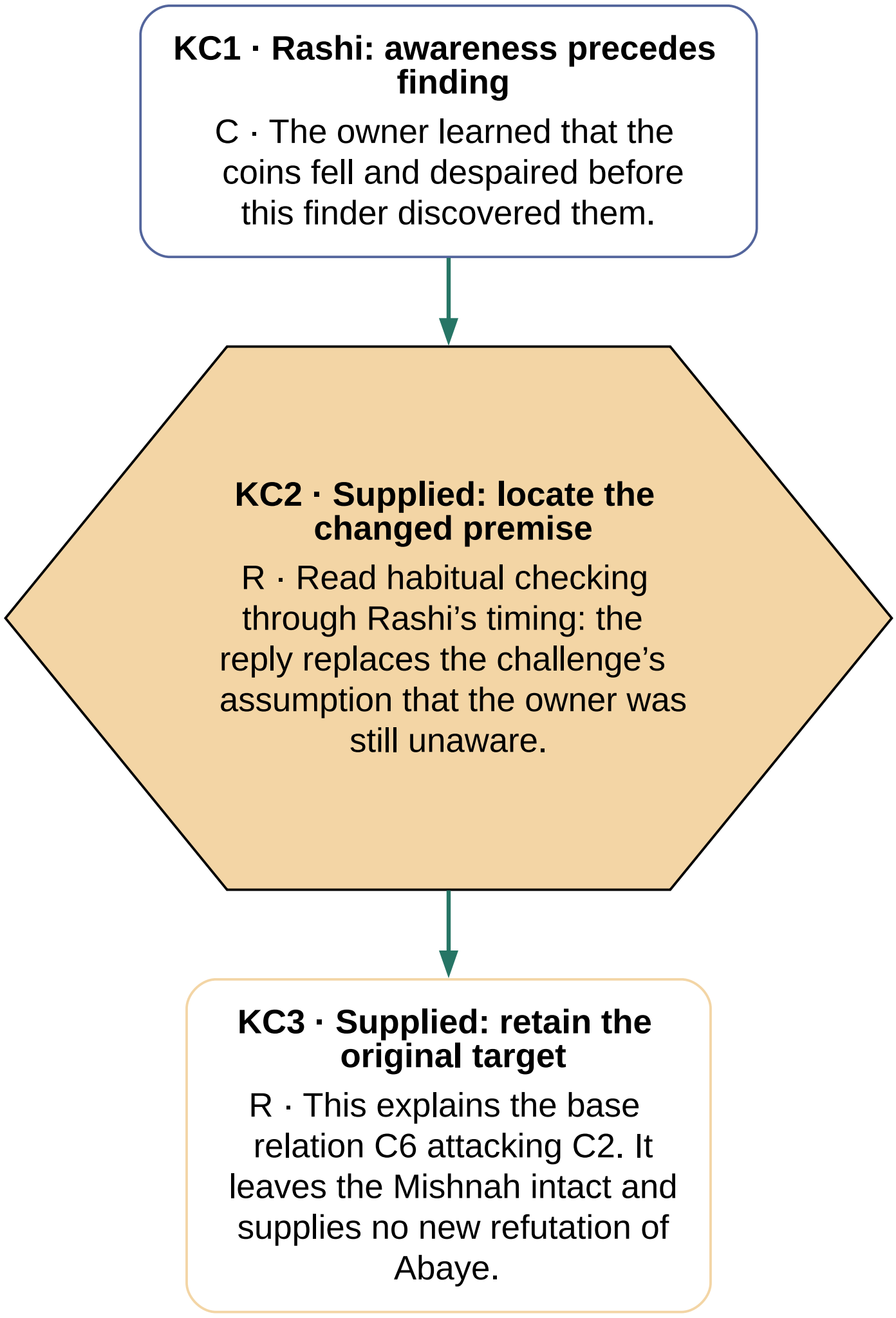


C = attributed commentary; R = our supplied synthesis. These are complementary explanations and qualifications, not an invented dispute. Base context: O1–O2, O4–O7.

Awareness before discovery.

Rashi supplies a precise temporal reading of the purse-checking reply. Our two supplied nodes locate its effect in the unchanged coins map.

→ **supports / explains** C Attributed commentator R Supplied editorial bridge All arrows are editorial; base maps remain separate.

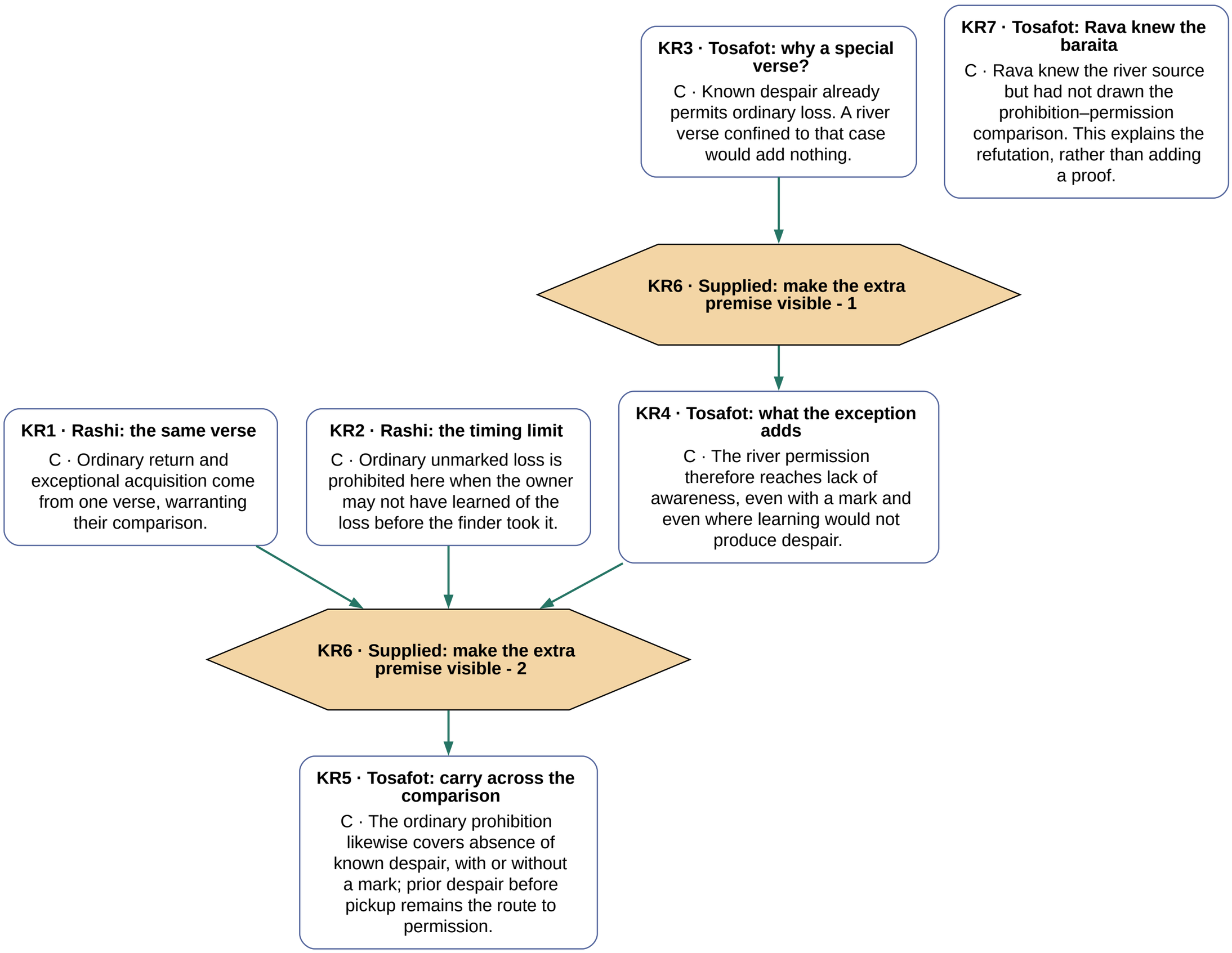


KC2–KC3 are our mapping explanation. The actual attack C6 → C2 remains in the base map; no second attack or undercut is introduced here.

Why does the comparison work?

Rashi states the same-verse warrant and awareness qualification. Tosafot supplies the redundancy argument that explains what the exceptional permission adds.

→ **supports / explains** C Attributed commentator R Supplied editorial bridge All arrows are editorial; base maps remain separate.

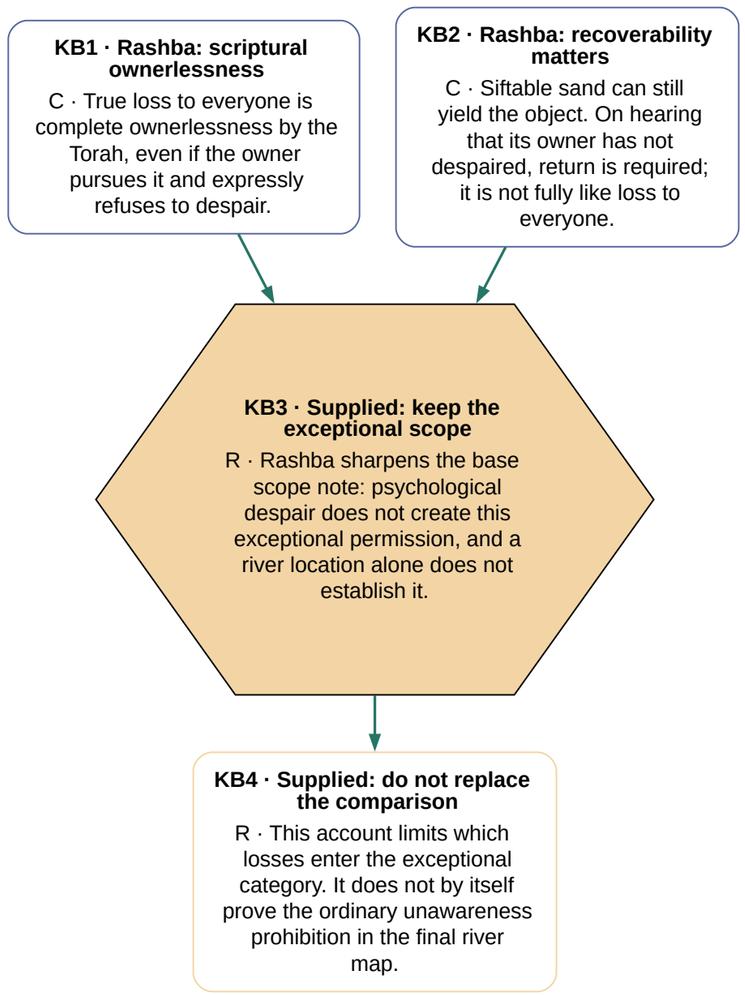


KR6 is an editorial synthesis of Rashi and Tosafot, now split into two numbered inference steps. KR7 remains an isolated explanation of what Rava missed. The final 22b comparison is distinct from the earlier 22a river exchange.

Loss to everyone is a real limit.

Rashba distinguishes scriptural ownerlessness from the owner’s psychological despair. His recoverability cases clarify the opening exception used in the final comparison.

→ **supports / explains** C Attributed commentator R Supplied editorial bridge All arrows are editorial; base maps remain separate.



The Biran River and sand discussions are commentary context, not newly encoded Gemara episodes. This selected account does not survey all opinions on the exception.

Opening · Rashi / Tosafot / Ritva

For map nodes KO1, KO2, KO3, KO4, KO5, KO6, KO7. English map text is our own paraphrase; C names its commentator and R marks our supplied synthesis.

Rashi on Bava Metzia 21b, s.v. יאוש שלא מדעת

דבר שסתמו יאוש לכשידע שנפל ממנו וכשמצאו עדיין לא ידעו הבעלים שנפל מהן:

Complete dibbur body. Defines the disputed timing; it does not itself endorse either disputant.

Rashi on Bava Metzia 21b, s.v. מהשתא הוי יאוש

שהרי נפל וכשיודע שוב אין דעתו עליו:

Complete dibbur body explaining Rava’s position, not an independent ruling by Rashi.

Tosafot on Bava Metzia 21b, s.v. דלכי נפל מיניה לא מיאש

ואע"ג דהשתא מיאש אקראי בעלמא הוא ומתחילה לא היה עומד ליאש:

Complete dibbur body. The identifying-mark context comes from the Gemara immediately above; this is a qualification, not a dispute with Rashi.

Ritva (via Shittah Mekubbetzet) on Bava Metzia 21b, s.v. ורבא אמר הוי יאוש כיון דלכי ידע לא סגי דלא מייאש

וכל היכא דאמרינן דיאוש שלא מדעת לא הוי יאוש או בדבר שאין בו סימן לאביי או בדבר שיש בו סימן לכולי עלמא אף על גב דאייאש לבסוף לא מהני ואפילו למאן דאמר בעלמא דיאוש כדי (לא קשיא) שאני הכא שנטלה בתורת גזל וכיון שבשעת נטילה לא זכה הרי ידו כיד הבעלים וכנפקד שלהם שאין יאוש מועיל בו והיינו דאמרינן לעיל דכי אתי באיסורא אתא לידיה ולאו באיסורא ממש שהרי לא נתכוון לגזול וחייב הוא ליטלה כיון שיש בה סימן אלא בשעת איסורא קאמרינן כלומר דכי אתא לידיה ברשות בעלים קיימא וכנוטל מידם דמי וזה ברור.

Continuous excerpt within the paragraph attributed to הריטב״א at its close in Shittah Mekubbetzet. Transcription including its parenthesis preserved. Not checked against a standalone Ritva edition. The marked-item duty to pick up must not be generalized to every unmarked object.

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Coins · Rashi

For map nodes KC1, KC2, KC3. English map text is our own paraphrase; C names its commentator and R marks our supplied synthesis.

Rashi on Bava Metzia 21b, s.v. עשוי למשמש

וקודם שמצאו זה נודע לבעלים שנפלו ונואשו:

Complete dibbur body on habitual purse checking in the scattered-coins reply (Gemara 21b:7).

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River · Rashi / Tosafot

For map nodes KR1, KR2, KR3, KR4, KR5, KR6, KR7. English map text is our own paraphrase; C names its commentator and R marks our supplied synthesis.

Rashi on Bava Metzia 22b, s.v. ואיסורא דומיא דהיתירא

כיון דמחד קרא ילפינן מצויה אצל כל אדם שיחזור ושאינה מצויה יזכה בה איתקושי אתקוש להדדי זו לאיסורא וזו להיתירא:

Complete dibbur body explaining the warrant for the Gemara’s final comparison (22b:6).

Rashi on Bava Metzia 22b, s.v. אף איסורא

דמצויה אצל כל אדם לא חילק בין אין סימן דכי ידע מיאש ליש סימן דלכי ידע לא מיאש וכי היכי דיש סימן אסירא כי אין סימן נמי אסירא היכא דאיכא למימר לא ידע דנפלה קודם שבאת ליד זה:

Complete dibbur body. Preserve the awareness-before-pickup qualification; not a prohibition on all unmarked finds.

Tosafot on Bava Metzia 22b, s.v. איסורא דומיא דהתירא

מה שמתיר אבודה ממנו ומכל אדם ע"כ לא איצטריך קרא בידע ומתיאש דהא אפילו במצויין אצל כל אדם מותרת ביאוש אלא לא אצטריך אלא כי לא ידע ואע"ג דלכי ידע לא מתיאש אפי' אם יש בו סימן כיון שהיא אבודה מכל אדם ה"נ איסורא דהיינו מצוייה אצל כל אדם דאסור כה"ג דלא ידעינן דמיאש בין יש בו סימן בין שאין בו סימן ואין להתיר אלא דמיאש קודם דאתא לידיה דשריא רחמנא:

Complete dibbur body. Splitting its redundancy argument and comparison into nodes is editorial; they are one commentary, not independent proofs.

Tosafot on Bava Metzia 22b, s.v. תיובתא דרבא

רבא ידע שפיר הך ברייתא כדמשמע קצת לעיל (דף כא:) דקאמר בזוטו של ים כ"ע לא פליגי דשרי כדבעינן למימר לקמן אלא דלא דייק איסורא דומיא דהתירא:

Complete dibbur body. Explains Rava’s awareness of the source and failure to draw this comparison; not another refutation.

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River boundary · Rashba

For map nodes KB1, KB2, KB3, KB4. English map text is our own paraphrase; C names its commentator and R marks our supplied synthesis.

Rashba on Bava Metzia 21b, s.v. זוטו של ים ושלוליתו של נהר … רחמנא אפקריה

מסתברא דהפקר גמור הוא, ואפילו מרדף אחריהם, ואפילו אמר בפירוש לא מיאשנא, אפילו הכי שריא דרחמנא אפקריה.

Opening sentence excerpt. The omitted discussion tests Biran River and sand cases; a second separate excerpt below preserves the recoverability boundary. This is Rashba's analysis of the exceptional category, not psychological despair.

Rashba on Bava Metzia 21b, s.v. זוטו של ים ושלוליתו של נהר … רחמנא אפקריה (recoverability)

אבל לאו כזוטו של ים הוא לגמרי, משום דהא אפשר לארבולי וזמנין דמשכח ליה, והילכך כל היכא דשמעינן דלא אייאש, לא הוה ליה כזוטו של ים, ומחייב לאהדורי, אבל זוטו של ים, אבודה היא לגמרי, ומשעת נפילתו הויא הפקר גמור, כך נראה לי.

Continuous closing excerpt about sifting sand, contrasted with complete loss. Earlier in the same dibbur Rashba also distinguishes recoverable Biran River; those later Gemara cases are contextual limits, not added base episodes.

Rashi on Bava Metzia 22b, s.v. ואיסורא דומיא דהיתירא

כיון דמחד קרא ילפינן מצויה אצל כל אדם שיחזור ושאינה מצויה יזכה בה איתקושי אתקוש להדדי זו לאיסורא וזו להיתירא:

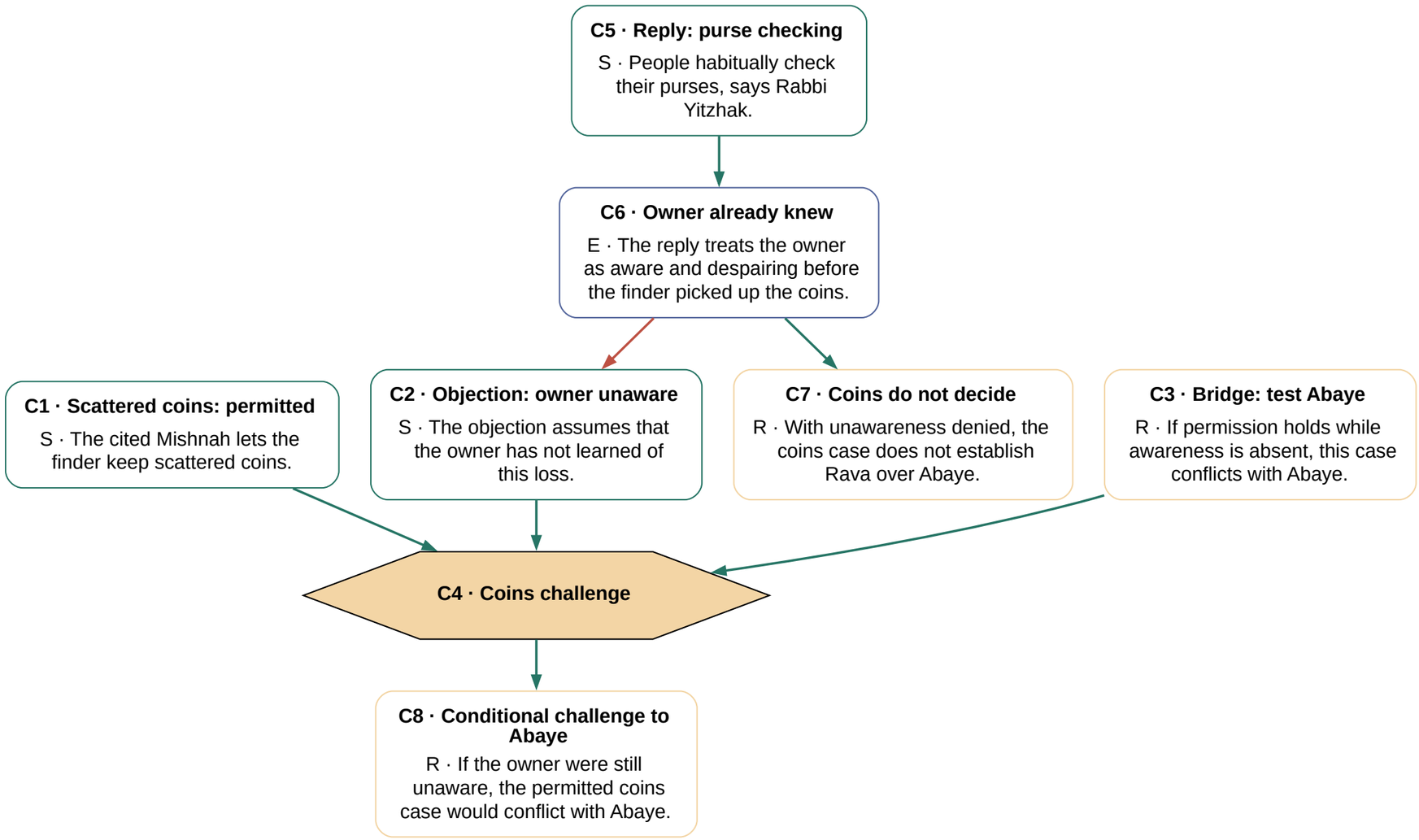
Complete dibbur body explaining the warrant for the Gemara's final comparison (22b:6).

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The challenge has three joint premises.

Permission, assumed unawareness, and the supplied bridge feed one inference. The factual reply attacks C2 directly.

→ support → attack Rectangle: claim · Hexagon: argument sketch / numbered inference S Source E Explanation R Reconstruction

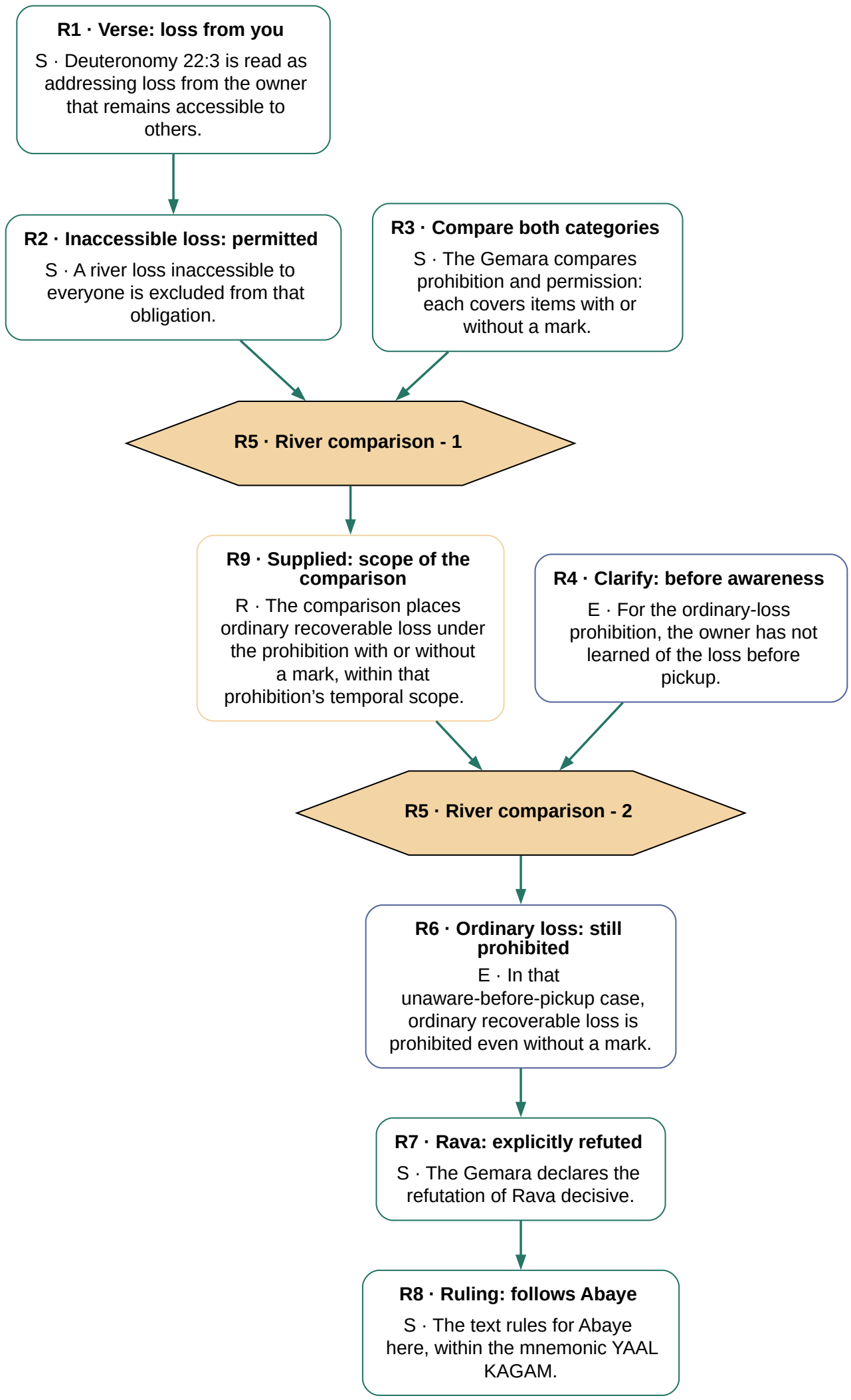


C8 is a conditional editorial conclusion, not a new source claim. Compare Code to see the numbered premises and uses: [1, 2, 3]. No undercut is asserted.

Comparison, then temporal qualification.

The first step states the compared categories. The second jointly uses that intermediate conclusion and Rashi’s awareness-before-pickup qualification.

→ **support** → **attack** Rectangle: claim · Hexagon: argument sketch / numbered inference **S** Source **E** Explanation **R** Reconstruction



> R9 is a supplied intermediate statement. R6 is the existing qualified conclusion, reused with identical meaning. The Gemara’s refutation and ruling are recorded, not computed.

C4 · Coins challenge

Permission plus assumed unawareness challenges Abaye, using the stated bridge.

Conditional reconstruction of the objection, not endorsement of its contested factual premise.

(1) C1 · Scattered coins: permitted

S The cited Mishnah lets the finder keep scattered coins.

(2) C2 · Objection: owner unaware

S The objection assumes that the owner has not learned of this loss.

(3) C3 · Bridge: test Abaye

R If permission holds while awareness is absent, this case conflicts with Abaye.

> **Conditional application of the supplied bridge**
> Uses: [1, 2, 3]. The three premises work jointly. C2 remains a defeasible factual assumption attacked by C6.

(4) C8 · Conditional challenge to Abaye

R If the owner were still unaware, the permitted coins case would conflict with Abaye.

Bava Metzia 21b:7

Numbering and rule names are editorial. Native uses metadata records dependencies; it does not establish formal validity. Same named statements retain the same meaning across views.

R5 · River comparison

Apply the comparison to ordinary unmarked loss before awareness: anticipated despair does not permit it.

Two-step editorial reconstruction; Rashi supplies the timing qualification.

(1) R2 · Inaccessible loss: permitted

S A river loss inaccessible to everyone is excluded from that obligation.

(2) R3 · Compare both categories

S The Gemara compares prohibition and permission: each covers items with or without a mark.

> **Source comparison within its stated scope**
> Uses: [1, 2]. This is a dialectical comparison, not deduction from river permission alone.

(3) R9 · Supplied: scope of the comparison

R The comparison places ordinary recoverable loss under the prohibition with or without a mark, within that prohibition's temporal scope.

(4) R4 · Clarify: before awareness

E For the ordinary-loss prohibition, the owner has not learned of the loss before pickup.

> **Apply the attributed temporal qualification**
> Uses: [3, 4]. Rashi supplies the unaware-before-pickup scope; prior conscious despair is not prohibited.

(5) R6 · Ordinary loss: still prohibited

E In that unaware-before-pickup case, ordinary recoverable loss is prohibited even without a mark.

Bava Metzia 22b:5 · Bava Metzia 22b:6 · Rashi on Bava Metzia 22b, s.v. אף איסורא

Numbering and rule names are editorial. Native uses metadata records dependencies; it does not establish formal validity. Same named statements retain the same meaning across views.

KR6 · Supplied: make the extra premise visible

Join the same-verse comparison to Tosafot's redundancy reasoning and preserve Rashi's timing limit. River permission alone is insufficient.

Editorial synthesis of Rashi and Tosafot, not a single commentator's proof or an attributed joint ruling.

(1) KR3 · Tosafot: why a special verse?

C Known despair already permits ordinary loss. A river verse confined to that case would add nothing.

> **Tosafot's redundancy argument**
> Uses: [1]. KR3 includes both the already-known permission and the special verse's otherwise redundant role.

(2) KR4 · Tosafot: what the exception adds

C The river permission therefore reaches lack of awareness, even with a mark and even where learning would not produce despair.

(3) KR1 · Rashi: the same verse

C Ordinary return and exceptional acquisition come from one verse, warranting their comparison.

(4) KR2 · Rashi: the timing limit

C Ordinary unmarked loss is prohibited here when the owner may not have learned of the loss before the finder took it.

> **Editorial synthesis of comparison and temporal scope**
> Uses: [2, 3, 4]. Jointly use Tosafot's exceptional scope, Rashi's same-verse warrant, and Rashi's timing limit; this arrangement is editorial.

(5) KR5 · Tosafot: carry across the comparison

C The ordinary prohibition likewise covers absence of known despair, with or without a mark; prior despair before pickup remains the route to permission.

Tosafot on Bava Metzia 22b, s.v. איסורא דומיא דהתירא · Rashi on Bava Metzia 22b, s.v. ואיסורא דומיא דהיתירא · Rashi on Bava Metzia 22b, s.v. אף איסורא

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